



SUMMARY REPORT

Agenda Date: 5/21/2019

To: Board of Supervisors

Department or Agency Name(s): Transportation & Public Works and Human Resources

Staff Name and Phone Number: Johannes Hoevertsz, 707-565-3585 and Christina Cramer, 707-565-2988

Vote Requirement: Majority

Supervisorial District(s): All

Title:

Personal Services Agreement, Sonoma County Waste Management Agency

Recommended Actions:

- A) Authorize the CAO to execute a Personal Services Agreement with Leslie Lukacs to be the Executive Director of the Sonoma County Waste Management Agency (SCWMA), effective June 4, 2019 through June 4, 2024 at the "F" step of the salary range, which is \$56.46 and other benefits and compensation as provided to unrepresented administrative management employees, in accordance with Salary Resolution 95-0926 as amended; and
- B) Delegate Authority to the County Administrator to extend the term of the Agreement if the SCWMA Joint Powers Authority (JPA) is extended and the SCWMA Board of Directors requests the County extend the Personal Services Agreement.

Executive Summary: Pursuant to the Joint Exercise of Powers Act, the SCWMA is a JPA formed by the cities of Cloverdale, Healdsburg, Sebastopol, Santa Rosa, Rohnert Park, Petaluma, Cotati, Sonoma, the Town of Windsor and the County of Sonoma. The attached personal services agreement reflects a successful recruitment process and negotiation between Leslie Lukacs and the SCWMA Board of Directors regarding the Waste Management Agency Executive Director position. The term of the agreement will be five years starting on June 4, 2019. The annual salary range for the Waste Management Agency Executive Director is currently \$104,272 to \$126,729, and per negotiations, Leslie Lukacs will be appointed by the Waste Management Agency at the \$117,838 salary. Leslie Lukacs is eligible for benefits and other compensation as provided to unrepresented administrative management employees in accordance with the personal services agreement and Salary Resolution 95-0926. The salary and fringe benefits provided to agency heads must be considered by the Board of Supervisors at a regularly scheduled Board meeting, and an oral summary of the recommended action to be taken on the salary and benefits must be presented at the meeting where the final Board action is taken (California Government code §54953, 54956).

Discussion:

From 1992 to 2010, the County provided staff services to the SCWMA. In 2010, the SCWMA and the County worked collaboratively to change the employment structure for the SCWMA by allowing the governing board of the SCWMA to have direct employment authority for their executive director, and for the executive director to become the appointing authority for other staff dedicated to providing services to SCWMA. Under the restructured arrangement, all SCWMA employees continue to be County employees.

Pursuant to the provisions of the Staff Contract between the County and SCWMA, the County Human Resources Department conducted a recruitment and the SCWMA Board selected Leslie Lukacs. Leslie Lukacs

has worked more than 21 years in the solid waste management industry. Prior to her appointment to the Sonoma County Waste Management Executive Director position, she served as SCS Engineer's Director of Zero Waste. The SCWMA Board has requested that the County enter into an agreement for personal services for the position of Executive Director with Leslie Lukacs for a term ending on June 4, 2024, unless terminated earlier due to the cessation of the SCWMA or as otherwise set forth in the agreement. This direction was provided at the May 15, 2019 SCWMA meeting.

Under the terms of the existing MOU for Special Staff Services between the SCWMA and the County of Sonoma, the SCWMA Board selects their Executive Director and determines the salary and term of the employee agreement. The Agency is required to reimburse the County for all costs associated with the Executive Director position.

The Board of Supervisors can delegate the authority to sign extensions of the Agreement with CAO. The Director of Human Resources Department recommends the Board delegate authority to the County Administrator to be able to extend the Personal Services Agreement should the SCWMA Board so request.

Prior Board Actions:

4/11/17, Board approved the amended and restated JPA agreement for the SCWMA, providing the Agency exist until it is dissolved and that the Agency conduct a public meeting every ten years to review the terms of the agreement;

5/3/16, Board approved the PSA with Patrick Carter to be Executive Director of the SCWMA, and delegated Authority to the County Administrator to extend the term of the agreement if the SCWMA Board of Directors requested the County extend the PSA, for a period not to extend beyond 2/11/19;

3/1/16, Board approved a one year extension of the SCWMA JPA agreement, for a period not to extend beyond 2/11/18;

6/1/10, Board approved agreement for Provision of Staff Services with SCWMA and the MOU for Special Staff Services between the County and the SCWMA and established the classification and salary for Waste Management Agency Executive Director;

6/12/92, 7/11/00, and 9/18/07, Board approved the JPA agreement and MOU's for staffing between the County and the SCWMA;

August, 1994, Board approved a Civil Service Ordinance revision to exempt Department Heads from the Civil Service System, as required.

FISCAL SUMMARY

Expenditures	FY 18-19 Adopted	FY19-20 Projected	FY 20-21 Projected
Budgeted Expenses	\$126,729	\$126,729	\$126,729

Additional Appropriation Requested			
Total Expenditures	\$126,729	\$126,729	\$126,729
Funding Sources			
General Fund/WA GF			
State/Federal			
Fees/Other	\$126,729	\$126,729	\$126,729
Use of Fund Balance			
Contingencies			
Total Sources	\$126,729	\$126,729	\$126,729

Narrative Explanation of Fiscal Impacts:

The salary and benefit costs for the Waste Management Agency Executive Director position is included in the agency's current and ongoing budget. The SCWMA is required to reimburse the County for all costs associated with the Executive Director position.

Staffing Impacts:			
Position Title (Payroll)	Monthly Salary Range (A - I Step)	Additions (number)	Deletions (number)

Narrative Explanation of Staffing Impacts (If Required):

None

Attachments:

Personal Services Agreement between the County of Sonoma and CAO

Related Items "On File" with the Clerk of the Board:

None